

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: July 23, 2026

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1.	United Auto Credit Corporation v. All Credit Sales LLC 25-1529116	Before the court is an unopposed motion filed by attorneys at Adli Law Group, P.C. ("Attorneys"), requesting to be relieved as counsel of record for defendant Letrice H. Palmer aka Heath Palmer ("Client"). The motion is GRANTED. Attorneys have complied with the requirements of <i>California Rule of Court 3.1362</i>, and filed and served forms MC-051, MC-052, and MC-

		053 on Client and on the other parties in this action. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Client. The motion is GRANTED. The court notes the order relieving counsel shall not be effective until Attorneys file proof of service of the ruling on Client. Until such time, Attorneys shall remain counsel of record. <i>Attorneys are ordered to give notice of this ruling.</i>
2.	Taghavi v. Khanaman 24-1436503	The motion by attorney Pasha Vafaei to be relieved as counsel for plaintiffs Azam Firouzfard and Hossein Taghavi is DENIED, for the reasons set forth herein. <u>First</u>, there is no mention of the date, time or location of the hearing in either the notice of motion or declaration. <u>Second</u>, there is no proof of service for the motion. <u>Third</u>, there is no proposed order. <i>Rule 3.1362(d)</i> requires that "the proposed order must be served on the client and on all other parties who have appeared in the case." <u>Fourth</u>, counsel's declaration regarding service is insufficient. <i>Rule 3.1362(d)(1)</i> requires that "If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either: (A) The service address is the current residence or business address of the client; or (B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved." Counsel states that he mailed notice to the clients at the last known address but that he has been "unable to confirm that the address is current or to locate a more current address for the client." (Declaration at Para. 3(b)(2).) However, counsel has failed to explain what "reasonable efforts" were made to determine the clients' addresses. The motion is therefore DENIED. <i>Attorney Pasha Vafaei is ordered to give notice of this ruling.</i>
3.	Capital One Bank (USA), N.A. v. Eckburg 17-922905	Before the Court is the unopposed Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement filed by Plaintiff Capital One Bank (USA), N.A. ("Plaintiff") against Defendant Caren Eckburg ("Defendant"). As more fully set forth below, the motion is DENIED. On 06/18/2026, the Court continued the hearing on the motion to 07/23/2026, and ordered Plaintiff to file and serve, no later than nine court days before the continued hearing date, a supplemental